

**Risk neutral**

| <b>Fee rule</b>    | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|--------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American           | 0.3603                             | 0.3603                        | 0.0361                             | 0.3850                         | 0.6712                        |
| Trial Fee-Shifting | 0.3267                             | 0.3018                        | 0.1433                             | 0.2991                         | 0.7082                        |